

Court No. - 4

Case :- WRIT - C No. - 10023 of 2018

Petitioner :- Amar Nath Vidya Ashram And Anr.

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Ramesh Chandra Sinha

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Bala Krishna Narayana,J.

Hon'ble Irshad Ali,J.

It has been submitted by learned counsel for the petitioners that the amount of electricity dues allegedly payable by the petitioner as mentioned in the impugned Demand Notice dated 18.10.2017 (annexure-9) is highly inflated. Moreover, after issuance of Demand Notice, the petitioner has deposited Rs. 20 lac in two parts on 5th and 6th March, 2018 but he has not brought any receipt on record.

Sri Baleshwar Chaturvedi, Advocate who has appeared on behalf of the respondent no. 3 prays for and is allowed two days time to seek instructions.

Put up on 22.3.2018. In the meantime, learned counsel for the petitioner may also file a supplementary affidavit appending thereto the receipts as the deposits made by him. In case, the petitioner has deposited the amount as stated by the learned counsel for the petitioner on 5th and 6th March, 2018, his electricity connection shall not be disconnected till the next date of listing.

Order Date :- 19.3.2018

A.K.Srivastava

Court No. - 3

Case :- WRIT - C No. - 10023 of 2018

Petitioner :- Amar Nath Vidya Ashram And Anr.

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Ramesh Chandra Sinha

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Anjani Kumar Mishra,J.

Hon'ble Jayant Banerji,J.

Supplementary affidavit filed in Court today. The same is taken on record.

Counsel appearing for the respondents 2, 3 and 4 is directed to file a counter affidavit within two weeks.

List this matter after two weeks.

Order Date :- 13.3.2024

Mayank

Court No. - 3

Case :- WRIT - C No. - 10023 of 2018

Petitioner :- Amar Nath Vidya Ashram And Anr.

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Ramesh Chandra Sinha

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Anjani Kumar Mishra,J.

Hon'ble Jayant Banerji,J.

Counsel for the petitioners prays for and is granted two weeks time to file rejoinder affidavit.

List thereafter.

Order Date :- 22.4.2024

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Court No. - 3

Case :- WRIT - C No. - 10023 of 2018

Petitioner :- Amar Nath Vidya Ashram And Anr.

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Ramesh Chandra Sinha

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Anjani Kumar Mishra,J.

Hon'ble Jayant Banerji,J.

Case called out in revised list.

Counsel holding brief of Mr. Baleshwar Chaturvedi, learned counsel for the respondent, seeks an adjournment.

The case is passed over for the day to be listed peremptorily in the next cause list.

Order Date :- 15.1.2025

Aditya Tripathi

Court No. - 3

Case :- WRIT - C No. - 10023 of 2018

Petitioner :- Amar Nath Vidya Ashram And Anr.

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Ramesh Chandra Sinha

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Anjani Kumar Mishra,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioners and counsel representing respondents 2, 3 and 4.

2. The challenge in the writ petition is to a demand notice dated 18.10.2017 (Annexure 9 to the writ petition). The case of the petitioner is that initially the petitioners' institution possessed three different electricity connections being S.C. No.007641, S.C. No.068315 and S.C. No.047169.

3. Subsequently and on an inspection being made, the petitioner was directed to apply and to obtain a single connection amalgamating the aforesaid three connections. This application was made by the petitioner and a single connection was provided to the petitioner. However, after this change, the multiplication factor was changed from 1 to 4 and hence a dispute arose regarding the amount chargeable and payable by the petitioners.

4. Learned counsel for the petitioners has additionally submitted that the connection has both commercial and domestic components as the same connection is being used for supplying electricity to the staff quarters of the institution.

5. On this aspect being represented, the petitioner was directed that the amount claimed in the demand notice impugned be deposited first and only thereafter the grievance of the petitioner would be considered.

6. It is also submitted that the actual payment under the demand notice has already been made but no further action as regards bifurcation of the commercial and residential components of the connection has not been done by the respondents.

7. The issue that is being raised now after deposit of the amount claimed in the demand notice, is a technical one, which is best

addressed by the Consumer Grievance Redressal Forum / Ombudsman, which has been provided for under para 7.10 of the U.P. Electricity Supply Code, 2005.

8. It is, therefore, left open to the petitioner to file a complaint before the concerned/appropriate Consumer Grievance Redressal Forum / Ombudsman under paragraph No. 7.10 of the U.P. Electricity Supply Code, 2005, which shall be considered and decided expeditiously, preferably within a period of three months from the date a certified copy of this order is filed before it along with the complaint.

9. Subject to the above, this writ petition stands disposed of.

Order Date :- 7.2.2025

Mayank